

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

USDC SDNY
DOCUMENT
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CHRIS SFORZA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JOSEPH
BONNER, P.O. DENNIS MORGANO, P.O.
BRYAN HANSON, P.O. JORDAN BISTANY,
SGT. LIZ SALINAS, SGT. MICHAEL
MCGOVERN, SGT. CHRISTOPHER NEWSOM,
SGT. RALPH PERFETTO, SGT. JOHN
ADRIANO, SGT. LUIGI PAGANO, P.O.S JOHN
and DANE DOE #1-10, individually and in their
official capacities, (the names John and Jane Doe
being fictitious, as the true names are presently
unknown), MCDONALD'S RESTAURANTS OF
NEW YORK, INC., and MCDONALD'S
EMPLOYEES JOHN and JANE DOE #11-20,
individually and in their official capacities, (the
names John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.

**STIPULATION OF
VOLUNTARY
DISMISSAL OF ALL
CLAIMS AGAINST
DEFENDANT CITY OF
NEW YORK**

07 CV 6122 (DLC)

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WHEREAS, Chris Sforza is the plaintiff in this action, and

WHEREAS, plaintiff commenced this action by filing a complaint on or about
June 29, 2007, in the United States District Court for the Southern District of New York, alleging
that certain of her federal and state law rights were violated, and subsequently amended her
complaint on September 26, 2007, August 6, 2008, and September 5, 2008 ("Complaint"), and

WHEREAS, the City of New York is named as a defendant in this action, and

WHEREAS, Joseph Bonner, Dennis Morgano, Bryan Hanson, Jordan Bistany, Liz Salinas, Michael McGovern, Christopher Newsom, Ralph Perfetto, John Adriano, and Luigi Pagano were also named as defendants in this action and were previously dismissed from this action by decision and order dated March 31, 2009, and

WHEREAS, defendant City of New York has denied any and all liability arising out of plaintiff's allegations, and

WHEREAS, plaintiff agrees to voluntarily withdraw and discontinue her claims against defendant City of New York in this action without further proceedings,

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the parties to this action, as follows:

1. Any and all claims against defendant City of New York are hereby voluntarily withdrawn and dismissed with prejudice and without attorneys' fees, costs, or expenses to any party arising out of any claims asserted against this defendant or related to the withdrawal of those claims, pursuant to Rule 41(a)(1)(A)(ii) of the Federal Rules of Civil Procedure.

2. Plaintiff Chris Sforza hereby releases and discharges defendant City of New York, its successors or assigns, all past and present officials, employees, representatives or agents, the New York City Police Department, and any other agency of the City of New York, from any and all claims which were or could have been alleged by the plaintiff in this action arising out of the events alleged in the Complaint, including all claims for attorneys' fees, expenses, or costs arising out of any claims asserted against this defendant or related to the withdrawal of those claims.

3. This Stipulation contains all of the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement

entered into prior to the execution of this Stipulation regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
December 28, 2009

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So ordered.

James G. He
Dec. 30, 2009